

CONSTITUTION AND RULES OF ADEK

ARTICLE 1: NAME, ABBREVIATION, IDENTITY AND STATUS

1. The name of the Party shall be the Alliance for Democracy and Equality in Kenya.
2. The abbreviation shall be ADEK.
3. The Party may use TATU as its values identity, meaning Teamwork, Accountability, Transparency and Unity.
4. The Party shall be a national political party founded and operated in accordance with the Constitution of Kenya, the Political Parties Act and other applicable law.

ARTICLE 2: SYMBOL, SLOGAN AND COLOURS

1. The Party symbol shall be the approved three-finger hand sign depicted in the artwork registered with the Registrar.
2. The slogan shall be "Umoja Wetu, Nguvu Yetu."
3. The registered colours shall be NAVY BLUE and GOLD/WHITE with exact print codes recorded in the Party register.
4. No alteration to the registered name, symbol, slogan or colours shall be made except in accordance with this Constitution and the law.

ARTICLE 3: VISION, MISSION, OBJECTS AND VALUES

1. Vision: A democratic, equal, united and prosperous Kenya in which every citizen has dignity, opportunity and a meaningful voice.
2. Mission: To organize citizens democratically, develop credible policy alternatives, nominate capable leaders and advance accountable, transparent and inclusive government.
3. Objects include promoting constitutionalism, democracy, equality, national unity, devolution, social justice, economic opportunity, integrity, human rights, sustainable development and peaceful political participation.
4. The Party's core values are Teamwork, Accountability, Transparency and Unity, together with integrity, inclusion, service, justice and respect for the rule of law.

ARTICLE 4: REGISTERED OFFICE, CONTACTS AND WEBSITE

1. The registered head office shall be situated at Kose Heights, Argwings Kodhek Road, Kenya.
2. Postal address: P.O Box 52565-00100 Nairobi. Telephone: +254722232886/+254733232883. Email: info@adektatu.ke
3. Official website: Adektatu.ke
4. The National Executive Committee may relocate the office subject to lawful notification to the Registrar.

ARTICLE 5: MEMBERSHIP

1. Membership is open to adult Kenyan citizens who accept the Party Constitution, ideology, values and Code of Conduct and who are not members of another political party.
2. No person shall be excluded unlawfully on grounds prohibited by the Constitution.
3. Joining fee: KSh 100. Annual subscription: KSh 600, subject to lawful review by the National Delegates Convention.
4. The Party shall maintain an accurate and continuously updated membership register containing the particulars required by law, including identification details and relevant disaggregated data.
5. A member may resign by written notice in the manner prescribed by law. Membership may cease by resignation, death, lawful expulsion or other grounds recognized by law after due process.
6. Members have rights to participate, vote where eligible, seek office subject to rules, receive information, fair hearing and equal treatment. Members shall obey lawful party decisions, uphold the Constitution, pay dues, reject violence/corruption and protect party property and reputation.

ARTICLE 6: PARTY ORGANS AND STRUCTURE

1. The organs shall include the National Delegates Convention, National Governing Council, National Executive Committee, County structures, Constituency structures, Ward structures, branch/sub-branch structures, special-interest-group leagues and such committees as lawfully established.
2. Not more than two-thirds of the membership of Party organs, bodies and committees in aggregate shall be of the same gender.
3. Party structures shall reflect regional and ethnic diversity, gender balance and representation of special interest groups.

ARTICLE 7: NATIONAL DELEGATES CONVENTION

1. The National Delegates Convention is the supreme policy-making organ of the Party.
2. It shall approve major policy, elect national officials when due, amend the Constitution, approve mergers or dissolution, receive audited accounts and exercise powers reserved to it by law.
3. An ordinary Convention shall be held at least once every year and a special Convention may be convened on the resolution of the National Governing Council or a qualifying written request under Party rules.
4. Notice, delegate accreditation, quorum and voting procedures shall be set out in regulations approved consistently with this Constitution.

ARTICLE 8: NATIONAL GOVERNING COUNCIL AND NATIONAL EXECUTIVE COMMITTEE

1. The National Governing Council shall provide strategic oversight between Conventions.
2. The National Executive Committee shall administer the day-to-day political and organizational affairs of the Party subject to this Constitution.
3. National offices shall include Party Leader, Deputy Party Leader(s), National Chairperson, Deputy Chairperson(s), Secretary-General, Deputy Secretary-General(s), National Treasurer, Organizing Secretary and such additional offices as approved in compliance with the law.
4. Eligibility, nomination, election, tenure, vacancy and removal procedures shall be democratic, transparent and set out in election rules.
5. The normal term of national office shall be 3 years, renewable subject to the Constitution and applicable law.

ARTICLE 9: MEETINGS, QUORUM AND DECISION-MAKING

1. Each organ shall meet with the frequency specified in its rules, with reasonable written notice except in genuine emergencies.
2. Quorum shall be 45% unless a higher threshold is prescribed for a particular decision.
3. Decisions should be by consensus where practicable, failing which by majority vote, except constitutional amendments, mergers and dissolution which require the special thresholds stated in this Constitution.
4. Minutes and resolutions shall be formally recorded, approved and securely maintained.

ARTICLE 10: COUNTY, CONSTITUENCY, WARD AND DIASPORA STRUCTURES

1. The Party shall establish branches and sub-branches in accordance with the law and registration requirements.
2. County organs shall coordinate membership, policy engagement, party elections, candidate support and administration within the county subject to national standards.
3. Diaspora structures may be established for Kenyan citizens abroad, but shall not exercise powers inconsistent with Kenyan electoral or political-party law.

ARTICLE 11: HUMAN RESOURCES AND ADMINISTRATION

1. The Party shall maintain documented employee records and lawful terms of employment.
2. The Party shall adopt human-resource, administration, financial, procurement, data-protection, records-management and audit policies.

3. Employment and procurement shall be merit-based, fair, transparent and subject to internal controls.

ARTICLE 12: FINANCE, AUDIT AND ASSET MANAGEMENT

1. Party funds shall come only from lawful sources and shall be received, banked, accounted for and reported as required by law.

2. No Party funds or assets shall be distributed among members for private benefit.

3. The Treasurer and authorized officers shall maintain proper books, budgets, controls, bank mandates and financial reports.

4. Accounts shall be audited annually and whenever otherwise required by law.

5. The Party shall maintain an asset register and policies for custody, use, disposal and investment of property.

6. Conflict-of-interest and procurement controls shall apply to Party officials and employees.

ARTICLE 13: POLICY DEVELOPMENT AND REPORTING

1. The Party shall prepare policy documents, strategic plans, annual work plans, budgets, performance reports and other reports required by law.

2. Policy shall be developed through research, public/member consultation, expert input and approval by the competent Party organ.

3. Approved policy documents shall be publicized through the Party website and other appropriate channels, subject to lawful confidentiality and data-protection requirements.

ARTICLE 14: INTERNAL ELECTIONS

1. Party officials shall be elected through regular, free, fair, credible and transparent internal elections.

2. An independent internal elections body/committee shall administer Party elections under published rules.

3. The rules shall address voter registers, nominations, campaigning, voting, counting, dispute resolution, accessibility, gender and inclusion requirements.

ARTICLE 15: NOMINATION OF ELECTION CANDIDATES AND PARTY LISTS

1. The Party shall adopt nomination rules consistent with the Constitution, electoral law and regulations.

2. Candidate selection may use lawful direct or indirect nomination methods and shall be transparent, competitive and inclusive.

3. Party-list nominations shall comply with constitutional and statutory requirements on gender, special interest groups and representation.

4. Nomination disputes shall be resolved promptly through the Party's internal mechanisms before escalation to external bodies as permitted by law.

ARTICLE 16: DISCIPLINE AND INTERNAL DISPUTE RESOLUTION

1. Members and officials are entitled to fair administrative action and a fair hearing.

2. Disciplinary offences and sanctions shall be defined in rules consistent with the Constitution, the Political Parties Act and the Code of Conduct.

3. No adverse decision shall be made without notice of allegations, reasonable opportunity to respond, an impartial decision-maker and written reasons.

4. The Party shall maintain an Internal Dispute Resolution Committee/Tribunal with an appeal mechanism.

ARTICLE 17: COALITIONS

1. The Party may enter into pre-election or post-election coalitions where approved by the competent organ and in accordance with law.

2. A coalition agreement shall be in writing, approved by the Party organ designated by this Constitution, and deposited with the Registrar within statutory timelines.

3. Coalition decisions shall protect the Party's constitutional values, institutional integrity and members' rights.

ARTICLE 18: MERGERS

1. A merger may be considered where it advances the Party's objects and national interest and is consistent with law.
2. A merger requires due notice, disclosure of terms, approval by the National Delegates Convention by at least 65%, and execution by authorized officials.
3. Assets, liabilities, membership records and legal obligations shall be dealt with in the merger agreement and applicable law.

ARTICLE 19: AMENDMENTS

1. The Party name, abbreviation, symbol, slogan, colours, Constitution or rules may be amended only through the procedure prescribed in this Article and applicable law.
2. Proposed amendments shall be circulated with reasonable notice and approved by at least 65% of the National Delegates Convention or other organ lawfully empowered for the relevant matter.
3. No amendment takes effect where statutory approval/registration is required until the relevant legal process is completed.

ARTICLE 20: DISSOLUTION

1. The Party may be dissolved only by a resolution of the National Delegates Convention supported by at least 65% and in accordance with law.
2. Upon dissolution, liabilities shall first be settled and remaining property shall be disposed of in the manner permitted by law and the dissolution resolution; no unlawful distribution to members shall occur.
3. Party branches may be dissolved or reorganized under procedures that ensure notice, reasons, fair hearing where rights are affected and protection of Party records/property.

ARTICLE 21: DEMOCRACY, HUMAN RIGHTS, GENDER AND INCLUSION

1. The Party shall respect and promote human rights, fundamental freedoms, equality and gender equity.
2. The Party shall progressively implement affirmative measures for women, youth, persons with disabilities, ethnic minorities and marginalized communities.
3. All Party organs shall be constituted consistently with the statutory two-thirds gender principle and applicable diversity requirements.
4. Political violence, intimidation, hate speech, discrimination, bribery and corruption are prohibited.

ARTICLE 22: NATIONAL VALUES AND GOVERNANCE

1. The Party and its members shall uphold patriotism, national unity, sharing and devolution of power, rule of law, democracy, participation of the people, human dignity, equity, social justice, inclusiveness, equality, human rights, non-discrimination, protection of the marginalized, good governance, integrity, transparency, accountability and sustainable development.
2. Officials shall treat Party office as a public trust and avoid conflicts between private interests and Party duties.

ARTICLE 23: RECORDS, DATA AND TRANSPARENCY

1. The Party shall maintain records required by law at its head office and county offices.
2. Personal data shall be collected, stored, used and disclosed lawfully and securely.
3. Members shall have access to Party records to the extent provided by law and Party rules.
4. Official records shall be preserved against unauthorized alteration, destruction or loss.

ARTICLE 24: GENERAL AND TRANSITIONAL PROVISIONS

1. The National Executive Committee may make regulations, manuals and procedures to implement this Constitution, provided they do not conflict with it or the law.
2. Where this Constitution conflicts with mandatory law, the law prevails and the competent Party organ shall promptly initiate a compliant amendment.

3. The founding members may appoint interim officials and committees for the provisional registration period, subject to democratic confirmation/election as required for full registration.